

Opinion of the Court

infringe his power to appoint federal judges, thereby raising a serious constitutional question. 19 Op. OLC, at 350 (quoting 28 U. S. C. § 458); see 19 Op. OLC, at 350–352. So it viewed such a statute as not applying to the President. Likewise, it has narrowly construed a criminal prohibition on grassroots lobbying to avoid the constitutional issues that would otherwise arise, reasoning that the statute should not “be construed to prohibit the President or executive branch agencies from engaging in a general open dialogue with the public on the Administration’s programs and policies.” Constraints Imposed by 18 U. S. C. § 1913 on Lobbying Efforts, 13 Op. OLC 300, 304 (1989); see *id.*, at 304–306.

The Government thus broadly agrees that the President’s official acts are entitled to some degree of constitutional protection. And with respect to the allegations in the indictment before us, the Government agrees that at least some of the alleged conduct involves official acts. See Tr. of Oral Arg. 125; cf. *id.*, at 128.

Yet the Government contends that the President should not be considered immune from prosecution for those official acts. See Brief for United States 9. On the Government’s view, as-applied challenges in the course of the trial suffice to protect Article II interests, and review of a district court’s decisions on such challenges should be deferred until after trial. See Tr. of Oral Arg. 69, 79–80, 154–158. If the President is instead immune from prosecution, a district court’s denial of immunity would be appealable before trial. See *Mitchell*, 472 U. S., at 524–530 (explaining that questions of immunity are reviewable before trial because the essence of immunity is the entitlement not to be subject to suit).

The Government asserts that the “[r]obust safeguards” available in typical criminal proceedings alleviate the need for pretrial review. Brief for United States 20 (boldface and emphasis omitted). First, it points to the Justice Department’s “longstanding commitment to the impartial enforcement of the law,” *id.*, at 21, as well as the criminal justice